



Golden HomeShare Limited License Agreement



Section 1. **Parties**

This Limited License Agreement (this “Agreement”) is made on _____ (the “Effective Date”) between _____ (“Licensor”), and _____ (“Licensee”). Licensor and Licensee agree to comply with the terms and conditions of this Agreement at all times during the Term (defined in Section 3.B).

Section 2. **Property**

- A. **Residence.** Licensor owns or leases the residence located at _____ (“Residence”). If Licensor leases the Residence, Licensee should request a copy of the lease agreement between Licensor and the landlord. Licensee agrees to comply with the terms of that lease agreement (other than paying rent to the landlord, which is Licensor’s responsibility).
- B. **Licensee Areas.** Licensor agrees that Licensee will have the right to use and occupy the bedroom(s) and other areas identified by Licensor in the Property Addendum attached to this Agreement (“Licensee Areas”). Licensor agrees not to access, or attempt to access, the Licensee Areas, except in accordance with this Agreement.
- C. **Shared Areas.** Licensor agrees that Licensee will have the right, in common with Licensor, to use and occupy shared areas within the Residence that are identified by Licensor in the Property Addendum (“Shared Areas”). The Licensee Areas and the Shared Areas are referred to as the “Accessible Property”. Licensor and Licensee agree to be respectful of each other in using the Shared Areas. When using the Shared Areas, Licensor and Licensee will each clean-up after themselves and keep such Shared Areas neat and clean at all times. Licensee agrees not to access, or attempt to access, any part of the Residence other than the Accessible Property without Licensor’s permission.
- D. **House Rules.** Licensor and Licensee agree to comply with the “House Rules” included in the Property Addendum (“House Rules”).

Section 3. **Term**

- A. **Start Date and End Date.** The initial term of this Agreement (“Initial Term”) will begin on _____ (“Start Date”) and will end on _____ (“End Date”). Upon the End Date, Licensee shall be required to vacate the Residence unless Licensor and Licensee extend this Agreement in writing or create and execute a new, written Homesharing Agreement (“Extended Term”). “Term” means the Initial Term and the Extended Term, if applicable.



- B. **Termination Rights.** Licensor and Licensee each have the right to terminate this Agreement at any time by delivering a written termination notice (“Termination Notice”) to the other party. The Termination Notice must state the date that this Agreement will terminate, which must be at least 30 days after the date that the Termination Notice is given. If either party delivers a Termination Notice, the “End Date” will be the termination date stated in the Termination Notice.
- C. **Moving In.** Licensee is permitted to move in to the Licensee Areas and begin using the Shared Areas on the Start Date. Licensor will give Licensee any keys or other access devices needed for Licensee to access the Residence on or before the Start Date.
- D. **Moving Out.** On or before the End Date, Licensee must (i) remove all personal property from the Residence, (ii) notify Licensor of any damage Licensee caused to the Property or the Residence (unless notice has been given under Section 6.A), and (iii) deliver keys, garage door openers and other access devices to Licensor.
- E. **Holding Over.** If Licensee fails to vacate the Property on or before the End Date, such failure will be Licensee Default (defined in Section 10.A) and Licensor will have all remedies stated in Section 10.A. Additionally, Licensee will be liable to Licensor for damages caused by failing to move out. During the period between the End Date and the date that Licensee moves out, the License Fee will be increased by 50% unless Licensor agrees in writing to a different License Fee amount, and Licensee will pay the increased License Fee on demand.

Section 4. **Security Deposit**

On the Effective Date, Licensee must pay to Licensor \$_____ (“Security Deposit”). Licensor may apply the Security Deposit to any costs paid as a result of Licensee’s breach of this Agreement. The Security Deposit (less any amounts applied by Licensor) will be returned to Licensee within 30 days after the End Date.

Section 5. **License Fee**

The license fee for the Initial Term is \$_____ per calendar month (“License Fee”). Licensee must pay License Fee for the first month of the Initial Term on the Effective Date, and before the first day of each month for the rest of the Term. License Fee includes Licensee’s share of utilities and other expenses relating to the Property, but does not include late charges, returned-check charges, or costs of repairs for damage to the Residence caused by Licensee (collectively, “Additional License Fee”). Licensor may report unpaid License Fee, charges, or damages to credit reporting



agencies. All License Fee shall be prorated for any partial calendar month, notwithstanding the foregoing, if Licensee sends a Termination Notice or moves out prior to the End Date, Licensee will not receive a refund of any portion of the License Fee.

Section 6. **Repairs and Maintenance**

- A. **Move-In Condition.** Licensee has inspected and accepts the Residence in its “as is” condition, and agrees that Licensors have made no express or implied warranties about the condition of the Residence and no agreements have been made about future repairs unless specified in this Agreement. Licensee may notify Licensors in writing of any defects in or damage to the Residence within forty-eight (48) hours after the Start Date of this Agreement; however, such notice does not constitute a request for repairs or maintenance. If Licensee does not deliver such notice in accordance with this Section 3.C, Licensee will be deemed to agree that the Residence is in good condition and no repairs or maintenance are necessary.
- B. **Licensee Obligations.** Licensee will be responsible for keeping the Licensee Areas neat and clean. Licensee will not make any alterations to the Residence or damage any part of the Residence. Licensee will promptly notify Licensors in writing of any maintenance or repairs Licensee believes are needed within the Licensee Areas or the Shared Areas, but will not perform maintenance or repairs without the approval of Licensors.
- C. **Licensors Obligations.** Licensors will be responsible for maintenance and repairs of the Residence, and will promptly pay all costs relating to such maintenance and repairs, except as provided in Section 6.A. Licensors will respond to Licensee within a reasonable period of time after receiving written notice from Licensee regarding maintenance or repairs (and will promptly perform maintenance and repairs to the extent necessary to comply with Licensors’ obligations under this Agreement)

Section 7. **Use of the Residence**

- A. **Occupants.** Licensee will not permit any other person to occupy the Residence during the Term unless Licensors agree in writing. Licensee will not sublease the Residence or assign this Agreement to any other person, and any attempted sublease or assignment will be void.
- B. **Legal Requirements.** Licensee will comply with all applicable laws affecting Licensee, Licensors and/or the Residence, and with all Licensors’ association rules and restrictive covenants affecting the Residence (collectively, “Legal Requirements”). Licensee will reimburse Licensors, within 10 days of demand, for



any fees, fines or other charges assessed against Licensor for Licensee's violation of this Section 7.B.

- C. Restrictions. Licensee will not permit any part of the Residence to be used for (1) any activity that is offensive, noisy, or dangerous, or otherwise constitutes a nuisance, (2) the repair of any vehicle, (3) any business of any type (but this will not prevent Licensee from working for Licensee's employer within the Licensee Areas), or (4) any illegal or unlawful activity or other activity that will obstruct, interfere with, or infringe on the rights of Licensor or other persons near the Residence.
- D. Guests and Pets. Licensee will comply with the House Rules relating to guests and pets. Licensee will at all times be solely responsible for Licensee's guests and pets, and will ensure that all guests comply with this Agreement, including the House Rules, while they are at the Residence.
- E. Insurance. Licensee must carry renters insurance providing coverage for Licensee's personal property.

Section 8. **Access by Licensor**

Licensor or anyone authorized by Licensor may enter the Licensee Areas at reasonable times to (a) inspect the condition of the Licensee Areas, (b) perform maintenance and repairs to the Residence, (c) exercise Licensor's rights or remedies under this Agreement, or (d) in the event of an emergency, to protect Licensor, Licensee and/or the Residence (or any personal property within the Residence). Licensor will give reasonable advance notice to Licensee prior to any access of the Licensee Areas, unless such access is for purposes described in subsection (c) or (d). To the extent that Licensor provides Licensee with keys or other access devices for any part of the Licensee Areas, Licensor is entitled to retain a key or access device to access the Licensee Areas in accordance with this Section 8.

Section 9. **Liability**

Subject to the Property Laws (defined in Section 12), Licensor will not be responsible to Licensee or Licensee's guests for any damages, injuries, or losses to person or property caused by fire, flood, water leaks, ice, snow, hail, winds, explosion, smoke, interruption of utilities, theft, burglary, robbery, assault, vandalism, other persons, condition of the Residence, or other occurrences or casualty losses. Licensee will promptly reimburse Licensor for any loss, property damage, or cost of repairs or service to the Residence caused by negligence or by improper use by Licensee or Licensee's guests. Licensor may require advance payment of repairs for which Licensee is liable.



Licensee should secure renters insurance and/or other insurance coverages for protection against liabilities and losses.

Section 10. **Default; Remedies**

- A. **Licensee Defaults.** In addition to the Licensee Defaults stated above (which are automatic and do not require notice), if Licensee fails to comply with any term or condition of this Agreement, and such failure is not cured within three (3) business days following written notice from Licensors (each, a “Licensee Default”), Licensors will be entitled to take any of the following actions:
1. **Termination.** Licensors may terminate this Agreement by written notice to Licensee, —in which event the “End Date” is the date that Licensee receives such —notice; provided, however, that Licensee will have 3 days to vacate the —Residence and surrender all rights to the Residence in accordance with the requirements of Section 3.D.
 2. **Legal Action.** Licensors may file a lawsuit against Licensee for breach of contract and/or any other cause of action in accordance with applicable laws.
 3. **Removal.** Licensors may take any action permitted under applicable laws to remove —Licensee and Licensee’s personal property from the Residence, including changing locks, access codes, and other means of entrance and egress. —Subject to Section 11 and Section 13, in the event that Licensors is required to —comply with any Tenancy Laws (defined in Section 11) or other Property —Laws, Licensors will exercise this remedy in accordance with such laws.
- B. **Licensors Defaults.** If Licensors fails to comply with any term or condition of this Agreement, and such failure is not cured within three (3) business days following written notice from Licensee (each, a “Licensors Default”), Licensee may terminate this Agreement by written notice to Licensors, in which event the “End Date” is the date that Licensors receives such notice; provided, however, that Licensee will have 3 business days to vacate the Residence and surrender the Residence in accordance with the requirements of Section 3.D. If Licensee terminates due to an Licensors Default, the License Fee for the month in which the End Date occurs will be prorated on a day for day basis, and Licensors will refund an amount equal to the prorated License Fee for the period between the End Date and the last day of such calendar month. Any refund will be paid at the time the Security Deposit is returned to Licensee in accordance with Section 4.



The remedies in this Section 10.B are Licensee's sole remedies for an Licensors Default.

Section 11. **License Agreement for Shared Occupancy**

Licensors and Licensee intend for this Agreement to be a revocable license for shared occupancy agreement, and do not intend to create a landlord-tenant relationship or any other relationship subject to landlord tenancy laws of the State, County, municipality, or other political subdivision in which the Residence is located (collectively, "Tenancy Laws"). The Licensors retain full legal possession of the Residence and grants the Licensee a limited, non-exclusive right to occupy designated areas of the Residence for the duration of the Term.

Section 12. **Property Laws**

Licensors and Licensee intend for this Agreement to comply with applicable laws. However, to the extent that Tenancy Laws, or any other applicable laws governing residential real property and/or short-term shared occupancy agreements similar to this Agreement (collectively, "Property Laws"), are permitted to be waived, modified or altered by this Agreement, Licensors and Licensee intend and agree (a) that if any Property Law contains (i) terms, conditions, or obligations that cannot be waived, modified or altered by agreement of Licensors and Licensee, or (ii) requirements that must be set forth in short-term occupancy agreements similar to this Agreement in order for the same to be valid and enforceable, such Property Law (or term, condition, obligation or requirement) is incorporated into this Agreement by reference, (b) to waive any term, condition or obligation of any Property Law to fullest extent allowable, and (c) if there is a conflict between this Agreement and any Property Law that may be modified or altered by agreement between Licensors and Licensee, this Agreement shall control. Licensors and Licensee agree that this Section 12 is intended to supplement, not supersede, Section 11.

Section 13. **Golden HomeShare Platform**

Licensors and Licensee are both members of Golden HomeShare, a secure platform that may be used to match Licensors with potentially compatible Licensees (the "Platform"). Licensors and Licensees each represent and warrant to Golden HomeShare, that they have read and understand the Terms of Use ("TOU").

Section 14. **Governing Law**

This Agreement will be governed by and interpreted under the laws of the State where the Residence is located, regardless of any conflict-of-law rules. All obligations of this Agreement are to be performed in the county in which the Residence is located.



Section 15. **Entire Agreement, Binding Effect, Waivers and Notices**

This Agreement (including the Property Addendum) represents the entire agreement between Licensors and Licensee. Any clause in this Agreement declared invalid by law will not terminate or invalidate the rest of this Agreement.

This is intended to be a legal agreement binding after final acceptance. Read it carefully. If you do not understand the effect of this agreement, consult an attorney before signing.

Section 16. **Involvement of Golden HomeShare in Agreement**

- A. Golden HomeShare is not a party to this Agreement. This Agreement is solely between the Licensors and the Licensee. Golden HomeShare does not act as a landlord, property manager, real estate broker, or legal representative of either party. Golden HomeShare is not responsible for enforcing the terms of this Agreement, resolving disputes, or ensuring the performance of either party. By using the Golden HomeShare platform, Licensors and Licensee acknowledge that all legal and financial responsibilities arising from this Agreement rest solely with the parties signing below.
- B. At the request of either party, Golden HomeShare may, at its sole discretion, offer informal mediation services to help facilitate communication and resolution of disputes between Licensors and Licensee. However, Golden HomeShare does not guarantee that mediation will result in a resolution, or that either party will be satisfied with the outcome. Participation in any mediation provided by Golden HomeShare is voluntary and non-binding.

Section 17. **Waiver of Jury Trial, Set-Off or Counterclaim.**

The parties hereto waive trial by jury in all matters except for personal injury or property damage claims. In a summary proceeding for eviction, Licensee waives Licensee's right to any set-off and/or counterclaim.

Section 18. **Amendments.**

This Agreement may only be changed or amended in a writing signed by the parties hereto.

Licensors

Licensee

Licensee



Golden HomeShare

Licensor Signature

Signature

Printed Name

Printed

Name

Date

Date

Property Addendum

Section 1. Licensee Areas

Licensee will have non-exclusive use and shared occupancy of the following areas within the Residence, referred to as the "Licensee Areas":

- | | | | |
|---|------------------------------|------------------------------|-----------------------------|
| A | Bedroom(s)
Notes _____ | ☐ Yes | ☐ No |
| B | Bedroom(s)
Notes _____ | ☐ Yes | ☐ No |
| C | Other Area(s)
Notes _____ | ☐ Yes | ☐ No |

Section 2. Shared Areas

Licensee will have the right to share the use and occupy the following areas of the Residence with Licensor, referred to as the "Shared Areas":

- | | | | |
|---|--|------------------------------|-----------------------------|
| A | Living Area(s)
Notes _____ | ☐ Yes | ☐ No |
| B | Kitchen
Notes _____ | ☐ Yes | ☐ No |
| C | Dining Area(s)
Notes _____
_____ | ☐ Yes | ☐ No |



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Section 3. House Rules

A. Use of Shared Areas

1. We agree to use the TVs in the Shared Areas as follows:

- ☐ Turn on anytime at a reasonable volume
- ☐ If the other person is in the same room, ask to turn on TV
- ☐ TV limited to these days or hours: _____
- ☐ TV off-limits

2. We agree to play music in the Shared Areas as follows:

- ☐ Play at any time at a reasonable volume
- ☐ If the other person is in the same room, ask to play music
- ☐ Playing music limited to these days or hours: _____
- ☐ Playing music off-limits

B. Social and Leisure Time

We agree that the following activities are acceptable:

- ☐ Drinking alcohol
Within these parameters: _____
- ☐ Smoking
Within these parameters: _____
- ☐ Other:
Within these parameters: _____

C. Quiet Hours

We agree that quiet hours will be from _____ to _____ on the following _____ days and/or occasions:

D. Pets **Pets**

- ☐ ARE NOT permitted at the Residence Pets



- ☐ ARE permitted at the Residence
Species and/or breed restrictions:

Other parameters:

E. Guests

- ☐ Guests ARE NOT permitted at the Residence
☐ Guests ARE permitted at the Residence

On the following days and/or occasions:

Other parameters:

F. Communication

If/when we need to notify the other party, and if/when we have disagreements, we agree to communicate using:

Notices

- ☐ In-person Conversation
☐ Phone Call
☐ Text message
☐ Email
☐ Other

Disagreements

- ☐ In-person Conversation
☐ Phone Call
☐ Text message
☐ Email
☐ Other

G. Chores

Licensor and Licensee agree on the following chore Owner and timing:

Task	Chore Owner	Frequency



1. Dishes should be washed:

- ☐ Right away—no sitting in the sink
- ☐ Overnight is fine
- ☐ Longer than overnight is fine/no preference

2. Expired food should be thrown out:

- ☐ Right away—no sitting in the fridge/pantry
- ☐ Within a few days is fine
- ☐ Longer than a few days is fine/no preference

H. Custom Section We agree upon the following

